

DATA CENTER COLOCATION LICENSE AGREEMENT

Obsidian Mesa Data Center — Suite 2A

between OBSIDIAN MESA DATACENTERS, LLC, as Provider,
and SUMMIT GRID ANALYTICS, INC., as Customer

This Data Center Colocation License Agreement (the "Agreement") is entered into as of the Effective Date set forth in Article 1. The parties intend that Customer's rights to occupy and use the Premises constitute a license to use space and services within Provider's data center, and not a lease of real property. Customer's rights are personal to Customer, subject to revocation per Article 14 and the SLAs, and do not create a tenancy or estate in land.

ARTICLE 1. KEY DEFINED TERMS

Defined Term	Entry
Effective Date	March 19, 2026.
Provider	Obsidian Mesa Datacenters, LLC, a Utah limited liability company (a wholly owned subsidiary of Beehive Realty Trust, LLC).
Customer	Summit Grid Analytics, Inc., a Delaware corporation.
Data Center	The Tier III–certified data center campus known as Obsidian Mesa Data Center, located at 8470 North Pole Line Road, Eagle Mountain, Utah 84005.
Premises	Suite 2A: a caged, lockable white-space area of approximately 6,400 NSF located within the Data Hall on the second floor of the Building, as depicted on Exhibit A, configured to receive up to ninety-six (96) cabinet positions.
Service Commencement Date	May 1, 2026.
Initial Term	Sixty (60) months from the Service Commencement Date, expiring April 30, 2031.
Renewal Terms	Two (2) automatic renewal terms of twelve (12) months each at then-current published rates, unless either party gives notice of non-renewal at least 180 days before the end of the then-current Term.
Critical Power Commitment	1,000 kW (1.0 MW) of IT critical load, configured N+1, on two (2) diverse 480V feeds (A Feed and B Feed).
Cooling Commitment	Cooling to support the Critical Power Commitment at ASHRAE TC 9.9 envelope, configured N+1.
Power Density	Average 10.4 kW per cabinet position; up to 20 kW per cabinet subject to row-level provisioning.
Cross-Connects	Ten (10) initial cross-connects from the Meet-Me Room included; additional per Exhibit Y.
Monthly Recurring Charge	As set forth in Section 2.2.

("MRC")	
Non-Recurring Charge ("NRC")	Per Section 2.3 and Exhibit Y.
Service Level Agreement	Per Exhibit S — 100% uptime on Critical Power and Cooling, with tiered Service Credits.
Permitted Use	Installation, operation, and maintenance of Customer's computing, storage, and network equipment, in accordance with the AUP (Exhibit Z), SLAs, and Laws.
Security Deposit	Two (2) months of MRC (\$72,000.00), refundable subject to Article 14.
Customer Notice Address	Summit Grid Analytics, Inc., Attn: Tessa H. Marwick, VP Infrastructure, 480 Lytton Ave., Suite 200, Palo Alto, CA 94301; ops to noc@summitgrid.example (24/7).
Provider Notice Address	Obsidian Mesa Datacenters, LLC, Attn: VP Customer Success, 8470 N. Pole Line Rd., Eagle Mountain, UT 84005; service-affecting to soc@obsidianmesa.example (24/7).
Exhibits	Exhibit A (Data Hall & Power Allocation); Exhibit B (Decommissioning); Exhibit C (Rules); Exhibit D (Contact Roster); Exhibit S (Service Levels & Credits); Exhibit Y (MMR & Cross-Connects); Exhibit Z (Acceptable Use Policy).

ARTICLE 2. GRANT; FEES; INVOICING

2.1 Grant of License. Provider grants Customer a non-exclusive license to occupy the Premises and to use the Critical Power, Cooling, and Services throughout the Initial Term and any Renewal Term. Customer's license is personal; nothing in this Agreement is a lease or creates any tenancy or estate in land.

2.2 MRC Schedule.

Year	Monthly MRC	Annualized
Year 1 (May 1, 2026 – Apr 30, 2027)	\$36,000.00	\$432,000.00
Year 2	\$37,080.00	\$444,960.00
Year 3	\$38,192.40	\$458,308.80
Year 4	\$39,338.17	\$472,058.04
Year 5	\$40,518.32	\$486,219.84

MRC includes: (a) licensed white-space; (b) Critical Power Commitment at base electricity cost up to a Power Allowance (75% load factor on the Critical Power Commitment, $\approx$ 6,570 MWh/year); (c) the Cooling Commitment; (d) base SOC, life-safety, security; and (e) the initial ten cross-connects.

2.3 NRC and Variable Fees. At Provider's published rates: cabinet installation; smart-hands beyond the included allowance; crate/dock advance scheduling outside business hours; cross-connects beyond ten;

additional cabinets; and Power Overage Charges (kWh above the Power Allowance billed at utility pass-through plus 15% admin).

2.4 Invoicing. Provider invoices MRC monthly in advance and NRC monthly in arrears; payment due net thirty (30) days via ACH.

2.5 Late Payment; Disputes. 1.5%/month late charge (or maximum lawful rate) on undisputed amounts past due. Customer may dispute in good faith by written notice within thirty (30) days; no late charge accrues on the disputed amount while pending.

2.6 Security Deposit. Delivered within five (5) business days after the Effective Date. Provider may apply to cure default; Customer replenishes within ten (10) business days. Return of unapplied balance within sixty (60) days after termination and decommissioning per Exhibit B.

2.7 Taxes. Customer pays sales, use, and other taxes on Provider's charges; not taxes on Provider income.

ARTICLE 3. POWER AND COOLING

3.1 Critical Power. Provider commits 1.0 MW critical load N+1 on diverse A/B feeds at the PDU branch serving Customer's cage. Customer shall design balanced A/B draw.

3.2 Power Density / Headroom. Average density per Article 1; up to 20 kW per cabinet subject to row-level provisioning and a written change order.

3.3 Power Allowance / Overage. Up to the Power Allowance is included; excess billed as Power Overage Charge under Section 2.3. Sustained use above 80% of the Critical Power Commitment requires change order.

3.4 Cooling. ASHRAE TC 9.9 Allowable envelope (18–27°C intake, 8–60% RH non-condensing). Customer maintains hot-aisle/cold-aisle containment, blanking panels, and cable management.

3.5 Adjustments. Changes via written change order with updated MRC and NRC.

ARTICLE 4. SERVICES; SECURITY; CROSS-CONNECTS

4.1 Included Services. 24/7 SOC monitoring; clean-agent suppression with VESDA in the Data Hall; badge + biometric mantrap + cameras + anti-passback + escort log; common-area janitorial; freight elevator and crate/dock access on advance scheduling; MMR infrastructure; up to 5-minute smart-hands during business hours for limited reboots; maintenance window notices.

4.2 Customer Access. Authorized personnel (Exhibit D) access 24/7 subject to badge enrollment, mantrap entry, and required Provider escort. Visitor/vendor access requires advance ticket.

4.3 Cross-Connects. Ordered via portal; Provider performs cabling and labeling per Exhibit Y.

4.4 Smart-Hands. Beyond Section 4.1 included allowance, billed per Exhibit Y rates with response-time targets.

ARTICLE 5. USE; ACCEPTABLE USE POLICY

5.1 Permitted Use. Per Article 1, in compliance with AUP (Exhibit Z) and Rules (Exhibit C). Customer may not (a) co-locate or resell space to third parties without consent; (b) house equipment with unusual heat/noise/vibration/EMI; (c) generate crypto-mining loads exceeding Power Density without change order; (d)

use specialized fire-suppression incompatible with Data Hall systems; or (e) use for sales-floor, lab, or human-occupancy.

5.2 Equipment. Customer's equipment is its property and shall be asset-tagged. Provider does not access cage interior except for life-safety emergencies, ordered smart-hands, or written authorization.

5.3 Compliance. Customer complies with all applicable Laws including export controls and data-protection requirements applicable to Customer's operations. Provider's SOC-2/ISO-27001 certifications apply to facility controls only; Customer's applications and data remain Customer's responsibility.

ARTICLE 6. SERVICE COMMENCEMENT AND READINESS

6.1 Provisioning. Provider provisions Premises (cage, biometric registration, PDU breakers, A/B power whips, ten cross-connects) by April 24, 2026.

6.2 Customer Installation. Installation may begin April 1, 2026, subject to AUP and coordination.

6.3 Ready for Service. Service Commencement on the SCD or RFS date. If Provider fails to achieve RFS by May 31, 2026 for reasons other than Force Majeure or Customer Delay, Customer may terminate on ten (10) days' notice and receive refund.

ARTICLE 7. SERVICE LEVELS

7.1 SLA. Per Exhibit S — 100% Critical Power and Cooling uptime, 99.999% in-MMR cross-connect availability, smart-hands response targets. Service Credits are Customer's sole remedy for SLA Failures, except that two (2) or more Major Outages within any rolling six (6) months attributable to Provider's gross negligence or willful misconduct give Customer a 30-day-notice termination right with no early-termination fee.

7.2 Maintenance. Planned maintenance during Exhibit S windows with required notice is not an SLA Failure.

ARTICLE 8. CHANGE ORDERS; EXPANSION

8.1 Change Orders. Changes to Critical Power, Cooling, cabinet count, cross-connect count, or footprint require a written change order.

8.2 Right of First Offer. Customer has ROFO (not ROFR) on adjacent ~3,200 NSF Suite 2B if it becomes available during the Initial Term. Provider notifies; Customer has ten business days to elect.

ARTICLE 9. ENVIRONMENTAL

9.1 Restriction. Customer shall not bring Hazardous Materials except (a) batteries in standard UPS units; and (b) cleaning/assembly supplies in customary office quantities.

9.2 Provider Generator/Fuel. Provider operates standby diesel generators and 15,000-gal diesel ASTs under SPCC, NFPA 30/110, and Utah air-quality permits, with weekly load testing and 72-hour fuel runtime.

9.3 Surrender. Customer removes equipment, cabling, consumables per Exhibit B and disposes of batteries/e-waste per Laws.

ARTICLE 10. INSURANCE

10.1 Customer Insurance.

Policy	Minimum Limit / Notes
Commercial General Liability	\$2,000,000 per occurrence / \$5,000,000 aggregate.
Commercial Property (Special Form)	Full replacement cost of Customer equipment and personal property in Premises.
Workers' Comp / Employer's Liability	Statutory; EL \$1,000,000.
Cyber Liability	\$5,000,000 per occurrence (data breach, regulatory fines, notification, credit monitoring).
Tech E&O / Professional Liability	\$3,000,000 per claim, covering Customer's services to end users.
Umbrella / Excess	\$5,000,000 each occurrence/aggregate.

10.2 Provider Insurance. Provider maintains property, CGL, business income, cyber, and other insurance appropriate for the Data Center.

10.3 AI; Waiver of Subrogation. Provider is named as additional insured on Customer's CGL and Umbrella on primary/noncontributory basis. Mutual waiver of subrogation.

ARTICLE 11. DATA, CONFIDENTIALITY, AND IP

11.1 Customer Data. Customer data, applications, and IP remain Customer's sole property. Provider has no right to access, copy, or use Customer Data. Provider's facility telemetry (badge logs, cameras, environmental telemetry) is Provider's operational data.

11.2 Confidentiality. Standard mutual confidentiality; Provider pricing and SLA structure are Provider Confidential Information.

11.3 IP. No grant of either party's pre-existing IP.

ARTICLE 12. INDEMNIFICATION; LIMITATION OF LIABILITY

12.1 Customer Indemnity. Customer indemnifies Provider from third-party claims arising from (a) Customer's breach; (b) negligence/willful misconduct of Customer parties; (c) Customer's use of Premises and Services (including content and traffic); (d) infringement claims from Customer equipment/software/services; and (e) Customer's violation of Laws.

12.2 Provider Indemnity. Provider indemnifies Customer from third-party bodily-injury or property-damage claims caused by Provider negligence at the Data Center and from infringement claims arising from Provider's facility infrastructure.

12.3 Limitation. Except for (i) indemnities, (ii) Customer payment, (iii) Customer AUP/Laws breach causing Provider regulatory liability, and (iv) confidentiality, no consequential/indirect/lost-profits damages, and each

party's aggregate liability in any twelve-month period is capped at twelve (12) months of then-current MRC. Service Credits are Customer's sole remedy for SLA Failures (with Section 7.1 carve-out).

ARTICLE 13. FORCE MAJEURE

Except for payment of MRC, NRC, and Service Credits, performance is extended for events beyond reasonable control. Force Majeure does not excuse a Major Outage that the N+1 design is intended to mitigate.

ARTICLE 14. DEFAULT; TERMINATION; EQUIPMENT REMOVAL

14.1 Customer Default. (a) Undisputed invoice unpaid ten (10) days after past-due notice; (b) material AUP breach uncured within ten (10) business days after notice; (c) other material breach uncured within thirty (30) days; (d) bankruptcy not dismissed within sixty (60) days; (e) loss of required insurance.

14.2 Provider Remedies. Suspension (with prior notice except for AUP emergencies); termination; apply Security Deposit; charge an early-termination fee of 50% of unbilled MRC for the balance of the then-current Term; and other remedies at law/equity.

14.3 Provider Default. (a) Service failures beyond Service-Credit thresholds; (b) material breach uncured within thirty (30) days (longer if diligently pursued); (c) bankruptcy not dismissed within sixty (60) days. Customer remedies: Section 7.1 termination right, accrued Service Credits, and direct damages subject to Section 12.3.

14.4 Equipment Removal. Within thirty (30) days after termination, Customer removes equipment per Exhibit B. If not removed, Provider may remove and store at Customer expense for up to ninety (90) days at published rates; thereafter Provider may dispose of equipment as abandoned, subject to Law.

ARTICLE 15. MISCELLANEOUS

15.1 Governing Law; Venue. Utah law governs. Venue: Salt Lake County, Utah.

15.2 Notices. Per Article 1; service-affecting via portal and SOC/NOC email.

15.3 Entire Agreement. Entire agreement; amendments require writing.

15.4 Assignment. Neither party may assign without consent (not unreasonably withheld), except (a) to an affiliate; (b) to a successor in merger/asset sale; or (c) Provider in connection with a sale or financing of the Data Center.

15.5 No Lease; No Tenancy. Per Section 2.1, this Agreement is a license. Nothing creates a tenancy, leasehold, or estate in land.

15.6 Counterparts; Electronic Signatures. Permitted.

15.7 Severability. Severable.

15.8 Waiver of Jury Trial. Mutual waiver to the maximum extent permitted by law.

15.9 Survival. Accrued fees, indemnity, confidentiality, IP, limitation of liability, equipment removal, and dispute resolution survive termination.

SIGNATURES

IN WITNESS WHEREOF, Provider and Customer have executed this Agreement as of the Effective Date.

PROVIDER:

OBSIDIAN MESA DATACENTERS, LLC, a Utah limited liability company

By: _____

Name: Cordelia P. Whitcombe

Title: VP, Customer Operations

CUSTOMER:

SUMMIT GRID ANALYTICS, INC., a Delaware corporation

By: _____

Name: Tessa H. Marwick

Title: VP, Infrastructure

Data Hall & Power Allocation

Obsidian Mesa Data Center — Eagle Mountain, UT — Suite 2A

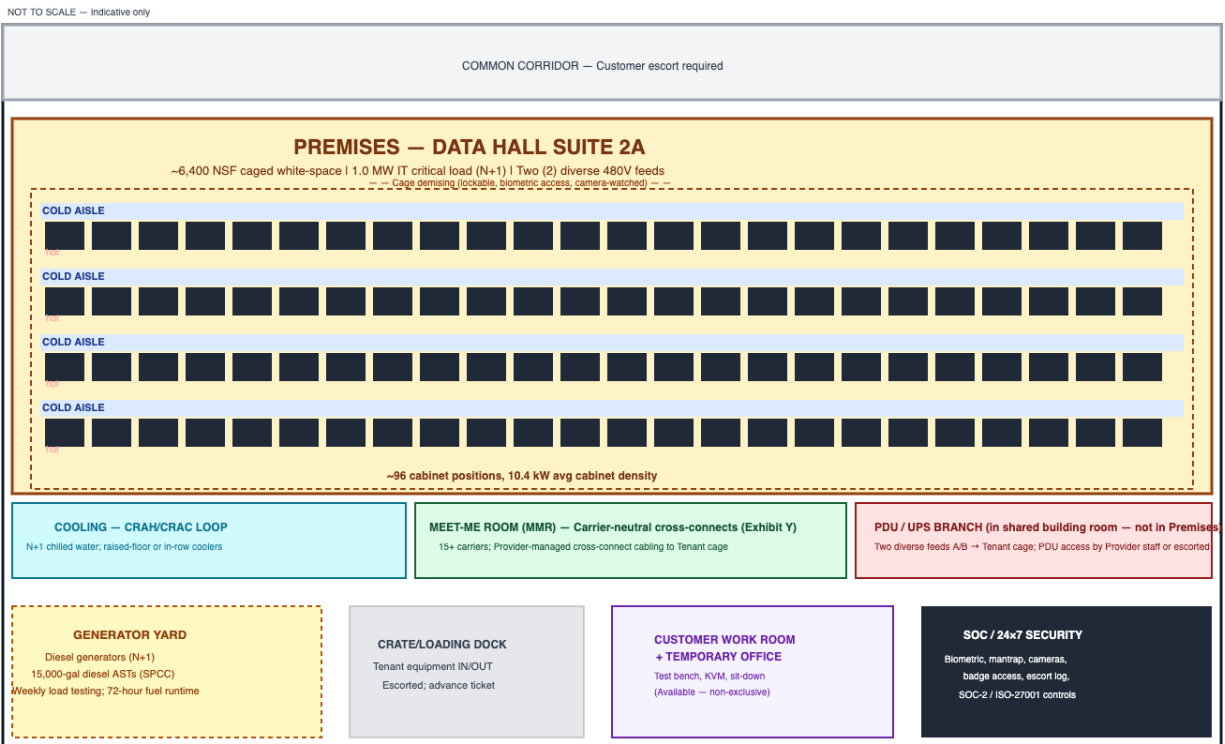


EXHIBIT B

Decommissioning Requirements

Within thirty (30) days after termination, Customer shall, at its sole cost:

1. Remove all servers, storage, network gear, cabinets, rails, blanking panels, cable management, accessories, tools, and consumables.
2. Disconnect and remove all Customer-installed structured cabling within the Premises (excluding MMR cross-connect cables, which Provider disconnects on order).
3. Dispose of batteries, UPS units, and e-waste per Laws; provide certificates of destruction for storage media on Customer's request.
4. Remove Customer-installed signage, labels, asset tags, and ticket residuals.
5. Sweep and leave the cage free of dust, debris, consumables.
6. Surrender access badges, biometric enrollments, mantrap credentials, portal logins.
7. Coordinate with Provider for power-down sequencing (A Feed then B Feed) to avoid adjacent-suite disruption.
8. Complete Provider's standard decommissioning checklist and obtain sign-off.

EXHIBIT C

Rules

1. No food, drink, or open beverages in the Data Hall. Sealed water bottles only in customer work room.
2. No photography or video in the Data Hall without prior approval; phone cameras shall be off or covered.
3. No tailgating; no sharing of badges or biometric credentials.
4. No equipment moved on/off the floor without an approved ticket.
5. No drilling, welding, hot-work, or liquid coolants outside approved closed-loop cooling.
6. Smoking, vaping, cannabis prohibited campus-wide.
7. No animals (other than service animals per Law).
8. No human occupancy, sleeping, lab, or sales activity in the Premises.
9. Cardboard prohibited in the Data Hall; trash/packing removed daily.
10. Cage doors locked when unattended.

EXHIBIT D

Customer Contact Roster & NOC Escalation

Field	Information
Primary (Business)	Tessa H. Marwick, VP Infrastructure — (650) 555-0810; tmarwick@summitgrid.example
Primary (24/7 NOC)	Summit Grid NOC — (650) 555-0911 (rotating); noc@summitgrid.example
Authorized Access — All Hours	Tessa H. Marwick; Devon J. Akande, Director SRE; Priya L. Venkataraman, Sr Network Engineer
Smart-Hands Requesters	As above plus on-duty Senior Engineer, identified via Provider portal
Billing	Marisol K. Egerton, AP — (650) 555-0855; ap@summitgrid.example
Security Incidents	security@summitgrid.example; (650) 555-0930
Mailing	Summit Grid Analytics, Inc., 480 Lytton Ave, Suite 200, Palo Alto, CA 94301

Escalation. Provider SOC: Tier 1 (monitor) → Tier 2 (shift supervisor) → Tier 3 (operations engineering manager) → Tier 4 (VP Customer Success). Customer authorized contacts may escalate to Tier 4 on any Major Outage.

EXHIBIT S

Service Levels & Service Credits

S.1 Definitions. "SLA Failure" = failure to meet a service level below. "Major Outage" = unscheduled interruption of Critical Power or Cooling to the Premises that causes one or more of Customer's racks to lose power or exceed the ASHRAE Allowable envelope for > 5 minutes. "Downtime" measured in minutes from notice/detection until restoration confirmed by Provider NOC. "Eligible MRC" = MRC for the month of the Failure.

S.2 Service Levels.

Metric	Target	Service Credit
Critical Power availability	100% (Tier III, N+1)	Per S.3
Cooling availability	100% (Tier III, N+1)	Per S.3
In-facility cross-connect (Provider-side, MMR)	99.999%	5% Eligible MRC per outage minute beyond threshold, capped at 25% MRC/month
Smart-hands response (Critical, business hours)	15 minutes	5% smart-hands fee credit per minute beyond, cap 100%
Smart-hands response (Critical, after hours)	30 minutes	As above
Smart-hands response (Standard)	4 hours	As above
Customer mantrap/door response	5 minutes	One-time 5% Eligible MRC credit per documented failure

S.3 Critical Power / Cooling Credits.

Cumulative Major Outage Downtime in a Calendar Month	Service Credit
1 – 15 minutes	5% Eligible MRC
16 – 60 minutes	15% Eligible MRC
61 – 240 minutes	30% Eligible MRC
> 240 minutes	50% Eligible MRC (max combined monthly credit)

S.4 Maintenance Windows. Standard: Tuesday 02:00–05:00 MT. Emergency: with reasonable notice. Customer-facing power-impacting maintenance: 10 business days advance notice. Maintenance in these windows is excluded from Downtime.

S.5 Exclusions. Credits do not apply to Downtime caused by (a) Customer actions/omissions; (b) Customer's carrier or hardware upstream of cross-connect; (c) Force Majeure (subject to Article 13 carve-out); or (d) scheduled maintenance per S.4.

S.6 Claim Procedure. Customer requests via portal within 30 days; Provider validates within 15 business days; validated credits on next invoice.

S.7 Cap. Monthly Service Credits cap at 50% of Eligible MRC, except where Section 7.1 termination right applies.

EXHIBIT Y

Meet-Me Room & Cross-Connects

Y.1 MMR. Carrier-neutral, diverse fiber entry, 15+ carriers, several cloud on-ramps. Customer accesses MMR services via order, not physical access (except escorted technical visits).

Y.2 Cross-Connect Charges.

Type	Install (NRC)	Monthly Recurring
Single-mode fiber, ≤ 50m	\$300	\$75
Single-mode fiber, > 50m	\$450	\$100
Multi-mode fiber	\$300	\$75
Cat 6A copper	\$250	\$50
Coaxial (DS-3)	\$400	\$125
Cloud on-ramp (AWS DX, Azure ExpressRoute, GCP Partner Interconnect)	\$500	\$200 (port; carrier fees separate)

Y.3 Standards. All cross-connects per TIA-942 labeling and Provider cable-management standard. Specific routing or diverse paths at standard NRC.

Y.4 Smart-Hands Rates.

Service	Rate
Smart-hands, business hours	\$95/hour, 30-minute minimum
Smart-hands, after hours	\$145/hour, 60-minute minimum
Equipment receipt / un-crating	\$75 per crate
Audit / inventory walk	\$95/hour

EXHIBIT Z

Acceptable Use Policy (AUP)

Z.1 Lawful Use. Customer shall not use Premises or Services in violation of any Law, including export controls, sanctions, data protection, child safety, and IP laws.

Z.2 Network Conduct. Customer shall not (a) facilitate spam, phishing, malware, DoS attacks, or unauthorized third-party network scanning; (b) generate traffic designed to disrupt the facility or other customers; or (c) traffic in stolen credentials, payment-card data, or sanctioned-party flows.

Z.3 Content. No content unlawful in the U.S., including CSAM and infringing content. Provider complies with valid takedown and law-enforcement requests; Provider notifies Customer where permitted.

Z.4 Resource Use. Sustained operation above commitments is both an AUP violation and a billing event.

Z.5 Cryptocurrency Mining. Permitted only if (a) within Power/Cooling commitments; (b) cooling/acoustic profile compatible with shared Data Hall; and (c) Provider has issued a written acknowledgment. Otherwise prohibited.

Z.6 AI/ML High-Density. GPU/accelerator cabinets > 20 kW require change order to confirm row-level provisioning and cooling.

Z.7 Enforcement. Provider may suspend for material AUP violation after notice and 10 business-day cure (immediate suspension for emergencies — content takedowns required by Law, active attacks, unsafe conditions).

APPENDIX 1

Deal Summary and Drafting Notes

Description.

A five-year colocation license agreement (with two one-year auto-renewals) for ~6,400 NSF caged white-space at Obsidian Mesa Data Center in Eagle Mountain, Utah. Customer receives 1.0 MW critical load (N+1) on diverse 480V feeds, Tier III cooling, 10 initial cross-connects from a carrier-neutral MMR, 24/7 SOC monitoring, biometric access, and a service-credit-backed SLA on 100% Critical Power, 100% Cooling, and 99.999% cross-connect availability. MRC starts at \$36,000 with 3% annual escalations; consumption above the 75% load-factor Power Allowance is billed as Power Overage Charge.

Archetype.

Retail colocation LICENSE (not lease). Structurally a services/license agreement: heavy on SLA, power/cooling commitments, smart-hands and cross-connect economics, AUP. Light on real-estate provisions (no operating-expense pass-through, no construction, no recording).

Key Drafting Notes.

- This is a LICENSE, not a LEASE. Sections 2.1 and 15.5 are explicit to avoid landlord-tenant claims that complicate suspension, removal, and bankruptcy treatment.
- Service Credits are sole-and-exclusive for SLA failures (50% monthly cap), plus a separate two-Major-Outage-in-rolling-six-months termination right for gross negligence/willful misconduct.
- Power Allowance (75% load factor) + pass-through Overage Charge + 15% admin insulates Provider from utility volatility and allocates real consumption to Customer.
- AUP (Exhibit Z) covers content, network conduct, conditional crypto mining, AI/ML high-density change orders, 10-business-day cure with emergency-suspension carve-out.
- Article 12 liability cap is 12 months MRC (industry standard); carve-outs preserve indemnity, payment, AUP/Laws regulatory liability, and confidentiality.
- Customer Data (Section 11.1) explicitly disclaims Provider rights — critical for SaaS customers on facility provider access.
- ROFO (not ROFR) on adjacent Suite 2B preserves Provider flexibility while giving Customer expansion priority.
- Decommissioning (Exhibit B) includes certificate-of-destruction option for storage media.

Items Intentionally Omitted.

Letter of credit (security deposit suffices); guaranty; landlord lien (Provider doesn't take a lien); CAM pass-through (MRC fully bundled); construction work letter (delivered ready-for-service); recording/memorandum (license, not lease).